

Chandrasekaran vs Gajalakshmi on 22 December, 2023

Author: J. Sathya Narayana Prasad

Bench: J. Sathya Narayana Prasad

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C.R.

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 22.12.2023

CORAM:

THE HON'BLE MR.JUSTICE J. SATHYA NARAYANA PRASAD

C.R.P.(PD).No.2324 of 2021
and CMP.No.17638 of 2021

1. Chandrasekaran
2. Kamala
3. Lalitha

Vs.

Gajalakshmi

This Civil Revision Petition is filed under Article 22 Constitution of India praying to call for the records and quash the proceedings initiated against them in D.V.C.No.6 of 2019, on the file of the learned Judicial Magistrate, Vanur & Thiruchitrambalam.

For Petitioner	:	Ms.V.Srimathi
For Respondent	:	Mr.T.Sai Krishnan

ORDER

The revision petition is filed to call for the records and quash the proceedings initiated against the petitioners in D.V.C.No.6 of 2019, on <https://www.mhc.tn.gov.in/judis> the file of the learned Judicial Magistrate, Vanur & Thiruchitrambalam.

2. The learned counsel for the petitioners submitted that the marriage of the respondent and the 1st petitioner took place on 20.01.2016 under the pretense that she was a divorcee and the respondent had suppressed the fact of her marriage with one Manivel that was solemnised on 02.02.2012 and had deliberately acted in a manner to cheat the petitioner and his family. He further submitted that

the respondent had suppressed the fact that her divorce proceedings were still pending before the Family Court, Cuddalore when she got married to the 1st petitioner and suppression of this fact has caused severe mental agony to the 1st petitioner. The respondent cannot claim the status as a wife under the Hindu Marriage Act, 1995 as she fails to satisfy the conditions laid down under Section 5(i), thereby rendering the marriage void by virtue of Section 11 of the Hindu Marriage Act, 1955.

3. The learned counsel further submitted that the respondent cannot file a case of domestic violence against the petitioners, as she had married the 1st petitioner before a decree of divorce was passed with <https://www.mhc.tn.gov.in/judis> respect to her marriage with Manivel. As she had not obtained a decree of divorce when she had married the 1st petitioner, she will not be considered as a wife under the Hindu law. The definition of Section 2(f) of the Protection of Women from Domestic Violence Act, 2005 the provision states that for one to have a domestic relationship there must be two persons who live or at any point of time, lived together in a shared household when they are related by consanguinity, marriage or through a relationship in the nature of marriage, adoption or family members living together as a joint family. Further a relationship in the nature of marriage is akin to a common law marriage. For a common law marriage:-

a. the couple must hold themselves out to the society as being akin to spouses b. they must be of the legal age to marry c. they must be otherwise qualified to enter into a legal marriage, including being unmarried.

d. they must have voluntarily cohabited and held themselves out to the world as being akin to spouses for a significant period of time.

For the relationship to be construed as one in the nature of marriage under the Domestic Violence Act, 2005, it must certainly fulfill <https://www.mhc.tn.gov.in/judis> the aforementioned requirements and further both the parties must have lived in a shared household as enshrined under Section 2(s) of the said act.

4. The learned counsel further submitted that all live-in relationships will not amount to a relationship in the nature of marriage to get the benefits enshrined under the Domestic Violence Act. A shared household would only mean the house belonging to or taken on rent by the husband or the house which belongs to the joint family of which the husband is a member. The respondent was fully aware that her marriage with Manivel was still subsisting when she entered into a live-in relationship with the 1st petitioner and she had only obtained a divorce decree only on 30.07.2019. Thereby, rendering the nature of the relationship of the respondent and the 1st petitioner as that of a concubine. As held by the Apex Court, a concubine cannot maintain a relationship in the nature of a marriage as such a relationship will not have exclusivity and will be monogamous in character. There is no domestic relationship between the 1st petitioner and the respondent and it cannot be said that the 1st petitioner had committed any act of domestic violence to invoke the <https://www.mhc.tn.gov.in/judis> Section 3 of the Domestic Violence Act, 1955 and this negates the payment of compensation to the respondent. He further submitted that a long standing relationship as a concubine, though not a relationship in the nature of marriage does not receive any protection

under the Domestic Violence Act, 2005. The learned counsel further submitted that the respondent cannot be construed to be “aggrieved person” as provided under Section 2(a) of the Domestic Violence Act, as she has not been in a domestic relationship with the 1st petitioner. The status of the respondent in the life of the 1st petitioner can be rendered to be that of a concubine and the nature of the relationship of a person with a concubine cannot in any way be rendered to a relationship in the nature of marriage. The learned counsel further submitted that in view of the undertaking given by the respondent to withdraw the DVC.No.6 of 2019 filed against the petitioners and the fact that the marriage between the 1st petitioner and the respondent is null and void, the 1st petitioner consents for a decree being passed, dissolving his marriage with the respondent that took place on 20.01.2016 and the 1st petitioner has also filed a memo dated 18.12.2023 to that effect before this Court.

<https://www.mhc.tn.gov.in/judis>

5. Per contra, the learned counsel appearing for the respondent submitted that in view of the 1st petitioner having chosen to claim that his marriage with the respondent on 20.01.2016 is null and void that no further purpose would be served in the respondent contesting the proceedings and the respondent is hereby consenting for her marriage with the 1st petitioner that took place on 20.01.2016 to be declared as null and void. He further submitted that this Court may be pleased to record the memo dated 15.12.2023 filed to that effect and set aside / quash the proceedings in DVC No.6 of 2019 pending on the file of the Judicial Magistrate, Vannur, Thiruchitrambalam.

6. Heard both sides and perused the materials available on record.

7. In the case on hand, it is an admitted fact that the 1st petitioner has married the respondent when the earlier marriage of the respondent with her first husband Manivel was subsisting on the date when the 2nd marriage was solemnised on 21.01.2019. The marriage between the respondent and her first husband viz., Manivel took place on 02.02.2012 and the 1st petitioner herein was under the <https://www.mhc.tn.gov.in/judis> impression that the respondent herein is a divorcee. The respondent has not informed the first petitioner that the divorce proceedings were still pending before the Family Court, Cuddalore and she suppressed the fact when she got married to the 1st petitioner herein on 20.01.2016 which caused severe mental agony to the petitioners. According to Section 5 (i) of the Hindu Marriage Act, 1955 the respondent cannot claim the status as a wife since she failed to satisfy the conditions laid down in that Section and thereby rendering the marriage void by virtue of Section 11 of the Hindu Marriage Act, 1955.

8. There is no dispute and it is an admitted fact that the 1st petitioner married the respondent on 20.01.2016, and the respondent earlier married Manivel on 02.02.2012 and the same was subsisting as on the date of second marriage i.e., with the 1st petitioner on 20.01.2016 and no decree of divorce was obtained by the respondent from the Family Court, Cuddalore and the Section 2

(f) of the Protection of Women from Domestic Violence Act, 2005 will not be applicable to respondent since the conditions and <https://www.mhc.tn.gov.in/judis> requirements that both the parties must have lived in a shared household as enshrined under Section 2(s) of the said act. It is

pertinent to note that the decree of divorce was obtained by the respondent from the first marriage with Manivel passed by the Family Court, Cuddalore dated 30.07.2019. Hence, it is crystal clear and evident that when the 1st petitioner married the respondent on 20.01.2016, the earlier marriage of the respondent with Manivel was subsisting on that date, thereby rendering the nature of relationship of the respondent and the 1st petitioner as that of a concubine and not as a wife.

9. The relationship between the 1st petitioner and the respondent is held to be a relationship not in the nature of marriage, the respondent cannot claim the right to live in a “shared household” as there is no domestic relationship between the 1st petitioner and respondent. Hence it cannot be said that the 1st petitioner had committed any act of domestic violence to invoke the Section 3 of the Domestic Violence Act, 1955 and this also negates the payment of compensation to the respondent. More over, the respondent cannot be construed to be “aggrieved person” as <https://www.mhc.tn.gov.in/judis> provided under Section 2(a) of the Domestic Violence Act, as she has not been in a domestic relationship with the 1st petitioner.

10. For the foregoing reasons, this Court is inclined to quash the proceedings initiated against the petitioners in D.V.C.No.6 of 2019 on the file of the Judicial Magistrate, Vanur @ Thiruchitrambalam and the same is hereby quashed.

7. In the result, the civil revision petition stands allowed with the above observations. No costs. Consequently connected miscellaneous petition is also closed.

22.12.2023 Index : No Internet : Yes dpq <https://www.mhc.tn.gov.in/judis> J. SATHYA NARAYANA PRASAD, J.

dpq To

1.The Judicial Magistrate, Vanur @ Thiruchitrambalam.

22.12.2023 <https://www.mhc.tn.gov.in/judis>